

August 8, 2008



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 9266
(EIGHTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division of 2.1, 2.2 and 2.3 gases in non-DOT Specification IMO Type 5 portable tanks. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.315 in that non-DOT specification IMO Type 5 portable tanks are not authorized except as specified herein.
5. BASIS: This special permit is based on the application of Eurotainer SA dated July 8, 2008, submitted in accordance with § 107.105 and the public proceeding thereon.

August 8, 20086. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Chlorodifluoromethane or Refrigerant gas R 22	2.2	UN1018	N/A
Chloropentafluoroethane or Refrigerant gas R 115	2.2	UN1020	N/A
Dichlorodifluoromethane or Refrigerant gas R 12	2.2	UN1028	N/A
1,1-Difluoroethane or Refrigerant gas R 152a	2.1	UN1030	N/A
Hexafluoropropylene, compressed or Refrigerant gas R 1216	2.2	UN1858	N/A
1,2-Dichloro-1,1,2,2-tetrafluoroethane or Refrigerant gas R 114	2.2	UN1958	N/A
Chlorodifluoromethane and chloropentafluoroethane mixture or Refrigerant gas R 502	2.2	UN1973	N/A
1,1,1-Trifluoroethane or Refrigerant gas R 143a	2.1	UN2035	N/A
1-Chloro-1,1-difluoroethane or Refrigerant gas R 142b	2.1	UN2517	N/A
Dichlorodifluoromethane and difluoroethane azeotropic mixture or Refrigerant gas R 500	2.2	UN2602	N/A
Heptafluoropropane or Refrigerant gas R 227	2.2	UN3296	N/A
Liquefied gas, toxic, flammable, n.o.s. <i>Inhalation Hazard Zone B</i> ¹	2.3	UN3160	N/A
Liquefied gas, n.o.s. ²	2.2	UN3163	N/A
Refrigerant gas, n.o.s. ²	2.2	UN1078	N/A

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- 1 - Subject to Special Provision B14 (§ 172.102)
- 2 - Subject to Portable Tank Code T50

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification portable tank, mounted in an ISO frame, designed and constructed in accordance with ANF-Industries drawings 46050.990.004 and 46050.191.0.05 Rev. C, other drawings, technical specifications and calculations on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA), and in compliance with the following:

(1) Insulation--Tanks have a sun shield.

(2) Water Capacity (U.S. Gallons)--4,438

(3) Material--French steel standard NFA 36205, designation A 52 FP (Carbon steel); Yield strength - 52,200 psi; Tensile strength - 74,820 psi.

	(outside dia.)	X (length)	X (thickness)
(4) Tank size(inches)	78.74	233.27	0.7126

Head Thickness-0.6575

Weld Joint Efficiency--1.0

Corrosion Allowance--0.0

Number of Baffles--2

(5) Design Pressure (PSIG)--336.0

Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code.

(6) Test Pressure, Minimum (PSIG)--504.0

(7) Openings--Two (2) - 7.5 inch diameter openings for pressure relief devices on the top; one(1) - 23.7 inch diameter opening for the manhole and one(1) - 6.5 inch diameter opening for the vapor phase valve on the head; and one(1) - 8.3 inch diameter opening for the liquid phase valve on the bottom.

NOTE: Each bottom outlet valve must be provided with a shear section that meets the requirements of 49 CFR 178.337-12.

(8) Tank surface area (square feet)--441

- (9) Pressure Relief Devices - Two (2) 2-1/2 inch diameter spring loaded safety relief valves set to discharge pressure between 336 psig and 370 psig and having a minimum total relief device capacity of 1,896,000 SCFH. Each pressure relief device must be marked with a start-to-discharge pressure in psig and a rated relief device capacity in SCFH.
- (10) G-Loadings: Vertical down 2; Vertical up 2; Longitudinal 2; and Transverse 2.
- (11) Maximum Gross Weight (pounds)--67,196.
- (12) Maximum Commodity Weight (pounds)--50,110.
- (13) Tare Weight (pounds)--17,086.
- (14) Design Specific Gravity--1.35.
- (15) Design Temperature Range (°F)-- -40 to 130.
- (16) Insulation - Division 2.3 materials must be transported in portable tanks that conform with § 172.102 Special Provision B14 and the insulation must be protected by stainless steel cladding. Portable tanks containing Division 2.1 and 2.2 and Class 3 materials may be uninsulated. A sun shield is optional.

b. TESTING -

- (1) Hydrostatic test certificates for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any representative of the DOT upon request.
- (2) Each tank must be (i) visually inspected prior to each trip to insure that it has not been damaged on the previous trip; and (ii) retested and reinspected once every five years in accordance with § 180.605(e) as prescribed for DOT Specification 51 portable tanks.
- (3) A test report documenting a satisfactory ISO prototype test for this tank design must be on file with the OHMSPA prior to the first shipment.

c. OPERATIONAL CONTROLS -

(1) Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-SP 9266".

(2) No product may be shipped that has venting requirements exceeding 1,896,000 SCFH. The venting capacity required for each product must be determined by the flow formulas contained in the Compressed Gas Association's (CGA) Pamphlet S-1.2.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Transportation of Division 2.1 (flammable gases) and Division 2.3 materials (gases which are poisonous by inhalation) are not authorized aboard cargo vessel unless specifically authorized in the Hazardous Materials Table (§ 172.101).

d. No new construction is authorized for portable tanks covered by this special permit.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel (see restriction in paragraph 8.c.)

10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each cargo vessel used to transport packages covered by this special permit.

b. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS:

- a. The owner of the tanks covered by this special permit must provide to the OHMSPA a list of all shippers who have shipped under this special permit and a shipping experience report every six months from the effective date of this special permit. The shipping experience report must contain approximate number of shipments made during the previous six months and any difficulties encountered.
- b. The holder or parties to this special permit must contact the OHMSPA immediately after any of the tanks covered by this special permit are sold to another party.
- c. Shippers who ship under the terms of this special permit must report any incident involving loss of any contents of the tanks described herein to the OHMSPA as soon as practicable.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: GEC/dl